

## Abrar Hussain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 July 2022 · WRIT - C No. 4964 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 objection; coercive action stayed eight weeks.**

### HEADNOTE

A writ seeking quashing of a PVVNL demand notice of Rs. 82,401, on the plea that no electricity connection had been given, was disposed of without any opinion on merits. The petitioner was given liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided within the next four weeks after hearing. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

### FACTUAL SUMMARY

Abrar Hussain challenged a 15 December 2019 PVVNL demand of Rs. 82,401, asserting that no electricity connection had ever been given to him. On 4 July 2022 the Division Bench granted the licensee a week to file a counter-affidavit. On 19 July 2022 counsel for the distribution company stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy-to-writ

#### HOLDING

Without expressing any opinion on merits, a writ challenging a PVVNL demand notice is disposed of with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the licensee within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after hearing, and no coercive action shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

### PRINCIPLE TAGS

**clause-6.5-alternate-remedy-to-writ** Certiorari against a PVVNL demand of Rs. 82,401 was refused on merits and the consumer was sent to the clause 6.5 objection, with a short coercive-action stay pending that decision. ¶ 1

**clause-6.5-statutory-remedy-disputed-bill** Counsel for the distribution company having stated that an objection to the demand would be decided in a time-bound manner, the Court treated Para 6.5 as the statutory forum for the disputed notice. ¶ 1

**6.5-representation-as-appropriate-remedy** Liberty was granted to file the clause 6.5 objection within four weeks, with a four-week decision window after hearing and an eight-week stay of coercive recovery. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE 15.12.2019 DEMAND OF RS. 82,401 WAS WITHOUT JURISDICTION BECAUSE NO ELECTRICITY CONNECTION WAS GIVEN TO THE PETITIONER

Writ disposed without expressing any opinion on merits; clause 6.5 objection to be decided in accordance with law. ¶ 1